

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
IRASEMA DEJESUS,

Index No.:

Date Issued:

Plaintiff,

-against-

THE CITY OF NEW YORK and NEW YORK CITY
POLICE DEPARTMENT AND NEW YORK CITY
POLICE OFFICER DYWANE HARRIS,

Defendant.

SUMMONSPlaintiff designates Bronx
County as the place of trial.The basis of the venue
is place of occurrence.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the complaint is not served with this Summons, to serve a notice of appearance, on the plaintiff's attorneys within twenty days after the date of service of this Summons, exclusive of the date of service or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
April 13, 2018Peter LoDuca, Esq.
LEVIDOW, LEVIDOW & OBERMAN, P.C.
Attorneys for Plaintiff
299 Broadway-Suite 1800
New York, New York 10007
(212) 964-3290
File No.: 16187**Defendant's Addresses:**

1. THE CITY OF NEW YORK - 100 Church Street, New York, NY
2. NEW YORK CITY POLICE DEPARTMENT -100 Church Street, New York, NY
3. POLICE OFFICER DYWANE HARRIS -100 Church Street, New York, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
IRASEMA DEJESUS,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK and NEW YORK
CITY POLICE DEPARTMENT AND NEW YORK CITY
POLICE OFFICER DYWANE HARRIS,

Defendant.

-----X
S I R S:

Plaintiff, complaining of the defendant, by her attorneys, LEVIDOW, LEVIDOW & OBERMAN, P.C., respectfully shows to this court and alleges:

1. Upon information and belief, that at all times hereinafter mentioned, the defendant CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York
2. Upon information and belief, that at all times hereinafter mentioned, the defendant, CITY OF NEW YORK., by its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof.
3. Upon information and belief, that at all times hereinafter mentioned, and on or prior to June 21, 2017, DYWANE HARRIS, was employed by the defendant, CITY OF NEW YORK, as a police officer.

4. The plaintiff served a Notice of Claim upon the Comptroller of the defendant, CITY OF NEW YORK, on or about July 17, 2017.

5. That a 50-H hearing was held by the City of New York on January 10, 2018.

6. That more than 30 days have elapsed since the Notice of Claim has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

7. That this action is commenced within one year and ninety days after the cause of action arose.

AS AND FOR A FIRST CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 7, with the same force and effect as if more fully and at length set forth herein.

9. That on or about June 21, 2017, the plaintiff IRASEMA DEJESUS, had been negligently, carelessly and violently knocked to the ground by police officer DYWANE HARRIS, who was running after an alleged suspect. Plaintiff IRASEMA DEJESUS, was lawfully walking along the sidewalk near East 300 East 158th street in the Bronx at approximately 4:00PM when a police officer running along the sidewalk negligently and without warning violently struck the plaintiff causing her to fall to the ground resulting in serious injuries. The plaintiff had been negligently, carelessly and violently knocked to the ground by police officer DYWANE HARRIS, who was running after an alleged suspect.

10. That the defendants, their agents, servants and employees, acting as agents and on behalf of defendant's and within the scope of their employment, negligently struck plaintiff, IRASEMA DEJESUS, in that they acted in an unreasonable manner and negligently came into

contact with plaintiff, and that act caused apprehension of such contact in the plaintiff, and defendants, in a hostile and/or offensive manner touched and pushed the plaintiff, without her consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such contact in and about her head, neck, face, both arms and both hands.

11. That by reason of the aforesaid negligence committed by the defendants, their agents, servants and employees, acting within the scope of their authority, the plaintiff suffered great bodily injury in and about her head, neck, body and limbs, and was rendered sick, sore, lame and disabled, and among other things, she suffered conscious pain and suffering, and that she was otherwise damaged.

AS AND FOR A SECOND CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 11 with the same force and effect as if more fully and at length set forth herein.

13. That the defendant, CITY OF NEW YORK, was careless and reckless in hiring and retaining as its employee, the above named individual; in that the said defendant employee lacked the experience, deportment and ability to be employed by the defendants in that the defendant failed to exercise due care and caution in its hiring practices, and in particular in hiring the defendant employee who lacked the mental capacity and the ability to function as an employee of the aforementioned defendant in that the defendant, CITY OF NEW YORK, failed to investigate the above named defendant's background and in that they hired and retained as an employee of their police department an individual who lacked the maturity, sensibility and intelligence to be employed by the defendant; in that the defendant knew of the lack of ability, experience, deportment and maturity of said defendant's employee when they hired him to be an employee;

and in that the defendants, their agents, servants and employees were otherwise careless, negligent and reckless.

14. That the aforesaid occurrence, negligently contacting the plaintiff, and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendant, its agents, servants and employees without any negligence on the part of the plaintiff.

15. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and she was rendered sick, sore, lame and disabled and so remains, and she has expended monies in an effort to cure herself of said injuries caused by the actions of the defendants, their agents, servants, and employees, and upon information and belief, will expend further sums in that direction and the plaintiff has been otherwise damaged.

AS AND FOR THE THIRD CAUSE OF ACTION

16. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 15 with the same force and effect as if more fully and at length set forth herein.

17. That the defendants, their agents, servants and employees negligently, carelessly and recklessly failed to properly train and supervise their employees, in particular the named defendant, NEW YORK CITY POLICE OFFICER DYWANE HARRIS, in that they failed to train their employees in the proper manner to control their tempers and exercise the proper deportment and temperament; and to otherwise act as reasonably, prudent police officers; failed to give them proper instruction as to their deportment, behavior and conduct as representatives of their employers and in that the defendants, their agents, servants and/or employees were otherwise

reckless, careless and negligent.

18. That the aforesaid occurrence, to wit negligent contact with the plaintiff and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendant, its agents, servant and/or employees without any negligence on the part of the plaintiff.

19. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and she was rendered sick, sore, lame and disabled and so remains, and she has expended monies in an effort to cure herself of said injuries caused by the actions of the defendants, their agents, servants, and employees, and upon information and belief, will expend further sums in that direction and the plaintiff has been otherwise damaged.

AS AND FOR THE FOURTH CAUSE OF ACTION

20. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 19 with the same force and effect as if more fully and at length set forth herein.

21. That the defendants, its agents, servants and/or employees negligently, carelessly and recklessly performed their police duties in that they failed to use such care in the performance of their police duties as a reasonably prudent and careful police officer would have used under similar circumstances, that the defendants, their agents, servants and/or employees negligently, carelessly and recklessly, without provocation and with great force and violence struck the plaintiff; and in that the defendants their agents, servants and employees were otherwise careless, reckless and negligent.

22. That the aforesaid occurrence, to wit the contacting of the plaintiff and the resulting

injuries to mind and body there from, were caused wholly and solely by reason of the negligence of the defendant, its agents, servant and/or employees without any negligence on the part of the plaintiff.

23. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and she was rendered sick, sore, lame and disabled and so remains, and she has expended monies in an effort to cure herself of said injuries caused by the actions of the defendants, their agents, servants, and employees, and upon information and belief, will expend further sums in that direction and the plaintiff has been otherwise damaged.

24. That by reason of the foregoing, the damages sought herein by the plaintiff exceeds the monetary jurisdiction of all other courts, together with costs, disbursements and interests.

WHEREFORE, the plaintiff demands judgment against the defendant on each cause of action in amounts which exceeds the monetary jurisdiction of all other courts, together with costs, disbursements and interests.

Yours, etc.,



PETER LODUCA, ESQ.
LEVIDOW, LEVIDOW & OBERMAN, P.C.
Attorneys for Plaintiff(s)
299 Broadway-Suite 1800
New York, New York 10007
(212) 964-3290

PETER LoDUCA, affirms under the penalties of perjury the following:

That he has read and knows the contents of the foregoing Complaint, that the same is true of her own knowledge except as to the matters therein stated to be alleged on information and belief and that as to those matters he believes it to be true.

That the plaintiff does not now reside within the county in which plaintiff's attorney's law office is located.

Your affirmitant further says that the grounds of her belief as to all matters in the said Complaint are statements of said plaintiff(s) papers and records in their possession, and a general investigation of the facts of this case.

*Dated: New York, New York
April 13, 2018*

Peter LoDuca
PETER LoDUCAL

INDEX NO.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

IRASEMA DEJESUS,

Plaintiff,

against

THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT
AND NEW YORK CITY POLICE OFFICER DYWANE HARRIS,

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

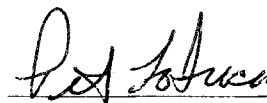
LEVIDOW, LEVIDOW & OBERMAN, P.C.

Attorneys for Plaintiff(s)
299 Broadway, Suite 1800
New York, New York 10007
(212)964-3290

CERTIFICATION PURSUANT TO 22 N.Y.C.R.R. §130-1.1a

PETER LODUCA, ESQ., hereby certifies that, pursuant to 22 N.Y.C.R.R. §130-1.1a, the foregoing **SUMMONS AND VERIFIED COMPLAINT** *is not frivolous or frivolously presented.*

Dated: New York, New York
April 13, 2018


PETER LODUCA

NOTICE OF ENTRY

PLEASE TAKE NOTICE that the within is a (certified) true copy of a _____ duly entered in the office of the clerk of the within named court on _____, 2017.

Dated: New York, New York
, 2017

Yours etc,
LEVIDOW, LEVIDOW & OBERMAN, P.C.
By:

NOTICE OF SETTLEMENT

PLEASE TAKE NOTICE that an order _____ of which the within is a true copy will be presented for settlement to the Hon. _____ one of the judges of the within named Court, at on _____, 2017, at _____ a.m./p.m.

Dated: New York, New York
, 2017

Yours etc.
LEVIDOW, LEVIDOW & OBERMAN, P.C.
By: